SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: W.P. (C) No. 494 of 2012 (YEAR: 2017)

CORAM: J.S. KHEHAR, J. CHELAMESWAR, S.A. BOBDE, D.Y. CHANDRACHUD, ET AL.

Justice K.S. Puttaswamy (Retd.)
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Constitution of India
Sections:	Article 21, Article 14, Article 19

JUDICIAL HEADNOTE & SUMMARY

Nine-judge constitution bench unanimously held that privacy is a fundamental right emanating from Article 21, establishing the requirements of legality, legitimate aim, and proportionality for state infringement.

RATIO DECIDENDI

The Court held that: Nine-judge constitution bench unanimously held that privacy is a fundamental right emanating from Article 21, establishing the requirements of legality, legitimate aim, and proportionality for state infringement. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Justice K.S. Puttaswamy (Retd.) v. Union of India (W.P. (C) No. 494 of 2012) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Constitution of India, particularly Article 21, Article 14, Article 19. Nine-judge constitution bench unanimously held that privacy is a fundamental right emanating from Article 21, establishing the requirements of legality, legitimate aim, and proportionality for state infringement.

OPERATIVE ORDER

ORDER: Decided